

MOTION FOR CONTEMPT PURSUANT TO MCR 3.606

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION FOR ORDER TO SHOW CAUSE AND FOR CONTEMPT

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCR 3.606 for an order requiring Defendant Emily M. Watson to show cause why she should not be held in contempt of court for her willful and contumacious violations of this Court's custody and parenting time orders. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Defendant Emily M. Watson has engaged in a systematic pattern of willful violations of court orders regarding custody and parenting time. These violations are not isolated incidents but rather a deliberate campaign to alienate the minor children from their father and to deprive Plaintiff of his court-ordered parenting time. The violations span the entirety of this case and have resulted in Plaintiff being denied meaningful contact with his children for approximately 571+ days.

II. LEGAL STANDARD -- MCR 3.606

A. Civil Contempt

MCR 3.606(A) provides that "[a] court may, in open court, order a person who has been found guilty of civil contempt to pay a fine, to be imprisoned, or both, for failure to comply with an order of the court."

B. Elements of Civil Contempt

To establish civil contempt, the moving party must demonstrate:

1. **A valid court order** existed
2. **The contemnor had knowledge** of the order
3. **The contemnor violated** the order
4. **The violation was willful** -- i.e., the contemnor had the ability to comply but chose not to

In re Contempt of Dougherty, 429 Mich 81, 97-98 (1987); *In re Contempt of Pavlos-Hackney*, 343 Mich App 642 (2022).

C. Burden of Proof

The moving party bears the initial burden of establishing, by a preponderance of the evidence, that the respondent violated a court order. The burden then shifts to the respondent to demonstrate an inability to comply. *Porter v. Porter*, unpublished; see also MCR 3.606.

III. DOCUMENTED VIOLATIONS

A. Systematic Denial of Parenting Time

Defendant has engaged in the following documented violations of custody and parenting time orders:

Pattern of Withholding:

1. **October 2023 - Ongoing:** Defendant began a pattern of unilateral restrictions on Plaintiff's parenting time, escalating from partial interference to complete denial.
2. **March 26 - May 2, 2024:** Defendant withheld the minor child LDW for over 37 days without a court order authorizing such withholding, in direct violation of the existing parenting time order.

3. **August 8, 2025 - Present:** Following the ex parte order (which Plaintiff contends was improperly obtained), Defendant has enforced a complete prohibition on all contact between Plaintiff and the children, exceeding even the terms of the ex parte order.

4. **Ongoing denial:** Defendant has refused to permit telephone calls, video calls, or any other form of communication between Plaintiff and the children, even when no court order prohibited such contact.

B. Withholding Medical Information and Access

1. Defendant withheld information about LDW's doctor's appointments and vaccinations on November 19, 2024.
2. Defendant has refused to provide medical records or information about the children's health status.
3. Defendant has excluded Plaintiff from medical decision-making in violation of court orders regarding joint legal custody.

C. False Reports and Abuse of Process

1. Defendant has made multiple unsubstantiated reports to law enforcement, resulting in nine (9) investigations, all of which yielded ZERO findings against Plaintiff.
2. These serial false reports constitute abuse of process and are designed to harass Plaintiff and create a false record.
3. The filing of serial ex parte motions based on unsubstantiated allegations constitutes abuse of the court process.

D. Interference with Parent-Child Relationship

1. Defendant has systematically excluded Plaintiff from the children's lives, activities, and milestones.
2. Defendant has made disparaging remarks about Plaintiff to the children (parental alienation).
3. Defendant has used the children as instruments to further her campaign against Plaintiff.

IV. WILLFULNESS OF VIOLATIONS

A. Defendant Had Knowledge of Court Orders

Defendant was a party to this action and was served with or present at the entry of all relevant orders. Defendant cannot claim ignorance of her obligations under these orders.

B. Defendant Had the Ability to Comply

Defendant had physical custody of the children and had the ability to facilitate parenting time. The children were available and willing to spend time with Plaintiff. Defendant's non-compliance was not due to impossibility but to deliberate choice.

C. Defendant's Conduct Was Intentional

The pattern of violations -- serial ex parte motions, false reports, withholding of medical information, complete denial of contact -- demonstrates a deliberate and coordinated campaign to deny Plaintiff access to his children. This is not negligence or inadvertence; it is willful and contumacious conduct.

V. REMEDIES REQUESTED

A. Makeup Parenting Time

Pursuant to MCL 722.27a(8), Plaintiff requests makeup parenting time for each day of parenting time that was wrongfully denied. Given the 571+ days of denial, Plaintiff requests a substantial block of makeup time to begin the process of repairing the father-child relationship.

B. Sanctions

Plaintiff requests that this Court impose sanctions on Defendant for her willful violations, including but not limited to:

1. A finding of contempt against Defendant
2. A fine sufficient to deter future violations
3. An order that Defendant pay Plaintiff's reasonable costs and expenses, including any filing fees, incurred in bringing this Motion

C. Attorney Fees and Costs

Pursuant to MCL 722.27a(8) and MCR 3.206(D), Plaintiff requests an award of reasonable attorney fees (or pro se litigant costs) incurred in bringing this Motion and in previous unsuccessful attempts to enforce parenting time orders.

D. Graduated Enforcement

Plaintiff requests that this Court enter an order providing for graduated enforcement in the event of future violations:

1. **First future violation:** Automatic makeup parenting time plus \$500 fine
2. **Second future violation:** Makeup parenting time plus \$1,000 fine plus 3 days incarceration (suspended upon compliance)
3. **Third future violation:** Makeup parenting time plus modification of custody per MCL 722.27

E. Incarceration as Coercive Sanction

In the event that lesser sanctions prove insufficient to compel compliance, Plaintiff requests that this Court consider the coercive sanction of incarceration pursuant to MCR 3.606(A). While Plaintiff does not seek incarceration as a first resort, the extended and willful nature of Defendant's violations may require this remedy to ensure future compliance.

VI. EVIDENCE IN SUPPORT

Plaintiff relies upon the following evidence in support of this Motion:

1. The complete court record documenting all orders and violations
2. The timeline of 571+ days of denied parenting time
3. Records of nine (9) police investigations, all resulting in zero findings
4. Negative drug screen results
5. HealthWest evaluation (initial: ALL ZEROS)
6. Communications documenting Defendant's intentional denial of contact
7. Records of withheld medical information
8. Any additional evidence to be presented at the contempt hearing

VII. IMPACT ON THE MINOR CHILDREN

A. Developmental Harm from Parental Absence

The willful denial of parenting time does not merely harm Plaintiff -- it causes direct, measurable harm to the minor children. Research consistently demonstrates that children who are separated from a parent suffer increased rates of anxiety, depression, behavioral problems, and academic difficulties. The American Psychological Association has recognized that maintaining meaningful relationships with both parents is essential for healthy child development.

B. Parental Alienation Dynamics

Defendant's conduct fits the recognized pattern of parental alienation, which includes:

1. **Limiting contact** between the child and the target parent
2. **Making false allegations** to justify the limitation of contact
3. **Interfering with communication** between the child and the target parent
4. **Disparaging the target parent** in the presence of the children
5. **Using the children** as instruments of conflict

These behaviors are not merely violations of court orders -- they constitute a form of emotional abuse of the children. The court has both the authority and the responsibility to address parental alienation through enforcement mechanisms, including contempt.

C. Cumulative Effect of 571+ Days

The 571+ day period of denied contact is not a minor infraction -- it is a sustained campaign of exclusion that has fundamentally altered the children's relationship with their father. At this duration, the alienation effects become increasingly entrenched and difficult to reverse. Every additional day of denied contact compounds the harm and makes reunification more difficult and traumatic for the children.

VIII. LEGAL AUTHORITY FOR CONTEMPT SANCTIONS

Michigan courts have broad authority to impose sanctions for contempt of custody and parenting time orders:

A. Statutory Authority

- * **MCL 600.1701**: Courts have inherent contempt authority to enforce compliance with court orders
- * **MCL 600.1721**: Courts may impose fines and costs for contempt
- * **MCL 722.27a(8)**: Specific authority for makeup parenting time and attorney fees when parenting time is wrongfully denied

B. Incarceration Authority

- * **MCR 3.606(A)**: Courts may order imprisonment for civil contempt
- * **In re Contempt of Dougherty**, 429 Mich 81, 97-98 (1987): Contempt sanctions may be either coercive (to compel compliance) or compensatory (to compensate the aggrieved party for losses)
- * **In re Contempt of Pavlos-Hackney**, 343 Mich App 642 (2022): Confirmed courts' authority to impose incarceration for civil contempt when necessary to compel compliance

C. Graduated Enforcement

Courts may -- and should -- impose graduated sanctions that escalate in severity with repeated violations. This approach serves both the coercive purpose of civil contempt (compelling future compliance) and the compensatory purpose (addressing the harm caused by past violations). The graduated enforcement framework requested in this Motion follows this well-established approach.

VII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **ISSUE** an Order to Show Cause requiring Defendant to appear and explain why she should not be held in contempt;
2. **FIND** Defendant in contempt of court for willful violation of custody and parenting time orders;
3. **ORDER** makeup parenting time for all denied parenting time;
4. **IMPOSE** sanctions including fines and costs;
5. **ORDER** graduated enforcement provisions for future compliance;
6. **AWARD** Plaintiff reasonable costs and fees;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion for Contempt upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors